TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
DECEMBER 7, 2020
MINUTES

Attachment 1—**STAFF REPORT**

Present: Barry Wolff, Chair, Julian Hopkins, Beth Santilli, Elliott Barrow, Stephen Wood, Stephen Duke, Megan Stevens.
Staff: Michael Robertson, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda

- *Mr. Wood moved for approval of the agenda. Mr. Duke seconded the motion. All in favor.*

B. Approval of Minutes

- *Mr. Wood moved for approval of the minutes. Mr. Hopkins seconded the motion. All in favor.*

- Mr. Wolff asked for a moment of silence in remembrance of Pearl Harbor Day.

C. Explanation of Procedures

- Mr. Wolff reviewed the procedures with the public.

D. Public Comment

There being no comments, Mr. Wolff continued with the agenda.

E. General Correspondence

No additional correspondence was received.

F. Administration of Oath

- Mr. Wolff administered the oath to those speaking.

G. Business

1. **Case V-33-2020, 3 William Street, TMS# 532-13-00-133, Request for relief from the strict application of §156.313 (E)(3) Old Village Historic District and §156.303 (C) to allow 45.20% impervious lot coverage. The ordinances limit impervious lot and building coverage to 40%.**

This item was withdrawn.

2. **Case V-34-2020, 3637 Marginal Road, TMS# 614-01-00-125, Request for relief from the strict application of 156.303 to allow a 13-foot rear yard encroachment, 3-foot side yard encroachment, and 9-foot side yard encroachment. The ordinance requires a 30-foot rear yard and 10-foot minimum side yard with a 25-foot combined side yard.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. Kyle Smith, representative for owner, reviewed the request with the Board.

- Mr. Daniel Mullin, 577 Bluestream, expressed concern with the request and stated that the property is zoned R-1. He stated that he is opposed to having a mobile home on the property as it is not in character with the neighborhood.

- Ms. Brett Cain, 305 Tower Drive, stated that she does not see a problem with having a mobile home on the property and in the neighborhood. She suggested that it would not adversely affect the character of the neighborhood. She suggested that the request would add to the value of the neighborhood.

- There being no further comments, Mr. Wolff closed the public hearing.

- *Mr. Hopkins moved for approval based on the findings in the application and staff report. Mr. Duke seconded the motion. All in favor.*

3. **Case V-35-2020, 260 Hobcaw Drive, TMS# 514-07-00-030, Request for relief from the strict application of Section 156.303 to allow a 4-foot side**

yard encroachment. The ordinance requires a 10-foot minimum side yard with a 25-foot combined side yard.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. David McCall, representative for the owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for approval of the variance based on the findings of the staff report and testimony provided that the criteria has been met with the condition that the existing accessory building on the northwest corner as presented in the record would not be used for rental purposes in perpetuity. Ms. Stevens seconded the motion. All in favor.*

4. **Case V-36-2020, 1506 Checker Court, TMS# 583-03-00-366, Request for relief from the strict application of PD to allow a 5-foot side yard encroachment. The PD Ordinance requires a 10-foot side yard. CORRESPONDENCE**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- *Mr. Wood moved for deferral. Mr. Duke seconded the motion. Motion passed on a 6 to 1 vote with Mr. Wolff, Ms. Santilli, Mr. Hopkins, Ms. Stevens, Mr. Duke and Mr. Wood in favor; Mr. Barrow opposed.*

5. **Case V-37-2020, 3705 Tower Rd., TMS# 614-01-00-099, Request for relief from the strict application of Section 156.226 to allow 100% mitigation for removal of tree without a permit. The ordinance requires 200% mitigation for trees removed without a permit.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Ms. Breta Cain, owner reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for approval of the variance with 150% mitigation required based on the findings that the ordinance requires mitigation but reduces the financial burden for the applicant based on situation and testimony provided. Ms. Santilli seconded the motion. Motion passed on a 4 to 3 vote with Mr. Wolff, Ms. Santilli, Mr. Duke, and Mr. Wood in favor; Mr. Barrow, Mr. Hopkins, and Ms. Stevens opposed.*

6. **Case V-38-2020, 262 Commonwealth, TMS# 596-08-00-260, Request for relief from the strict application of 156.111 to allow a 1,225 sq. ft. footprint accessory structure. The ordinance allows a maximum 750 sq. ft. footprint for an accessory structure.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. Jason Dobson, owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Barrow moved for deferral to the next meeting to allow the applicant the opportunity to apply for a height variance of the proposed structure so that both requests can be simultaneously heard. Ms. Stevens seconded the motion. All in favor.*

7. **Case V-39-2020, 1581 Porcher Bluff Road, TMS# 599-00-00-018, Request for relief from the strict application of §156.303 to allow a 10½ inch encroachment resulting in a 29.125-foot rear yard. The ordinance requires a 30-foot rear yard.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Ms. Sabrina Vogel, representative for the owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Ms. Stevens moved for approval of the request based on the findings that the zoning changed after plans completed, variance is small in nature, and neighbors are in favor of the request. Mr. Duke seconded the motion. All in favor.*

The Board convened for a short break at 7:42 pm and reconvened at 7:52 pm.

8. **Case S-4-2020, Hwy 17N at Old Course Lane, TMS# 614-00-00-337, Request for Special Exception in accordance with the provisions of Section 156.326 (C) Use Conditions (5) Commercial Uses (g) Gas Station. CORRESPONDENCE**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. Chuck Baker, attorney for the owner, and Ms. Jennifer Bihl reviewed the request with the Board. He asked for additional time for his presentation. *The Board agreed to allow 10 minutes of additional time.*

Since additional time was allotted to the applicant, the Board agreed that additional time would be allotted to each speaker for public comment.

- Mr. Steven Stack, 3279 Heathland Way, stated that he is opposed to the request. He expressed concern that there are no current traffic controls at the intersection. He expressed concern with pedestrian safety and suggested that if approved it would cause a hazard to the neighborhood. He suggested that there is a sufficient number of gas stations in the area. He submitted a copy of a petition in opposition of the request.

- Mr. Stuart Koffman, 1239 Old Course Lane, referred to §156.411(A)(3)(d) that states that a special exception can only be approved if it does not cause a detriment to the area. He suggested that the proposed use would adversely affect the area as there are only two entrances into the neighborhood. He suggested that the proposed use should not be allowed.

- Mr. William Johnston, 4112 Egrets Point Drive, expressed concern with the request. He stated that he is conducting a SW study of Chas National and the system is connected throughout Chas National. He suggested that the proposed request would affect the SW system. He expressed concern with the proposed use causing an impact on the eco system. He suggested that there is a sufficient number of gas stations in the area. He suggested that the reasons for opposition of the proposed use outweighs the reasons for approval.

- Mr. Bruce Bingham, 3040 Linksland Road, expressed concern with the request and the fact that there are only two entrances into Charleston National. He suggested that the proposed ingress/egress would be onto a private neighborhood road and expressed concern that this would cause additional traffic.

- Mr. Tom McCale, 24 Charter Oaks Drive, expressed concern with ingress/egress from the neighborhood. He suggested that the small residential street would not be sufficient for the request.

- Mr. Mike Swartz, 1308 Divet Court, expressed concern with the request and suggested that this would be the first gas station at the entrance of a residential neighborhood and if approved, would set a precedent. He suggested that a signal warrant could take two years or longer and suggested that not having a signal would be a hazard. He suggested that the request would cause additional traffic.

- Mr. Bill Hartness, 3433 Oxfordshire Lane, and president of HOA, stated that they submitted a letter of opposition to the project.

- Ms. Maria Wynn, 1180 Old Course Lane, stated that the current buffer along US 17 is thin. She expressed concern with light spillover and that it would decrease the value of their homes.

- Mr. Andrew Burk, 3486 Stockton Drive, stated that they recently located in MP. He stated that he is opposed to the request. He suggested that there should be better notification of applications. He expressed concern with traffic safety and suggested that the request would negatively impact the neighborhood. He expressed concern with child safety in having a gas station in such close proximity to a residential neighborhood. He also suggested that the gas station would impact emergency services in the near vicinity as well as the hospital.

- Mr. Joseph Brick, 1189 Royal Links Drive, expressed concern with the proposed gas station being in proximity to a residential neighborhood.

- Mr. Dominic Sevilia, 3849 Hanovarian Drive, expressed concern with the request and suggested that some concrete assurance that construction would not be completed until there is appropriate infrastructure is in place. He

expressed concern with cut-through traffic. He suggested that the concerns of the residents should be addressed prior to allowing constructions.

- Mr. Jim Hogg, 1188 Old Course Lane, expressed concern with traffic issues and suggested that the traffic study indicates a peak trips LOS F. He suggested that the intersections are currently unsafe and suggested that traffic signals should be required. He asked that the request be denied.

- Mr. Darrell Poole, 1281 Hogan's Alley, expressed concern with traffic in the area. He commended the Board on their service to the Town. He stated that the regulations indicate that the detriment of the area and surrounding neighborhood and public good should be taken into consideration when considering approval of a special exception. He suggested that the public good is a much broader concern and should be taken into account for this request.

- Ms. Karen Koomer, 1309 Toomer Court, suggested that the proposed gas station would have an inordinate impact on the surrounding neighborhood. She suggested that the traffic study is not accurate as it was conducted while school was not in session. She suggested that the compatible uses mentioned by the applicant should not be considered as they are farther down the road and have larger buffers along US17.

- There being no further comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for denial based on the findings that sufficient proof has not been provided for adequate protection against noise, glare, odor and other factors as outlined in §156.411(3)(a) and it has not been proven that the proposed use would be compatible with existing uses as required in §156.411(3)(d). Ms. Stevens seconded the motion. All in favor.*

H. Approval of Final Orders

The Board approved final orders.

There being no further business, the meeting adjourned at 9:09 pm.

Submitted by,
L. Lynes
BOZA12072020